

Disciplinary Procedure (United Kingdom)

Jurisdiction: United Kingdom | Effective date: 1 June 2026 | Version 4.1 | Owner: Employment Law Team

1. Purpose and Scope

This procedure follows the Acas Code of Practice on disciplinary and grievance procedures. It applies to all employees who have completed their probationary period.

2. Stages of the Procedure

2.1 Stage One - Verbal Warning

Issued for minor misconduct. Remains active on file for 6 months.

2.2 Stage Two - First Written Warning

Issued for repeated minor misconduct or a more serious first offence. Remains active for 12 months.

2.3 Stage Three - Final Written Warning

Issued where a written warning is already active, or for serious misconduct. Remains active for 12 months.

2.4 Stage Four - Dismissal

Dismissal with notice, or without notice in cases of gross misconduct. Only a director or head of department may authorise dismissal.

3. Gross Misconduct

Examples include theft, fraud, physical violence, serious breach of health and safety rules, serious insubordination, and unauthorised disclosure of confidential client data. Gross misconduct may result in summary dismissal without notice or payment in lieu of notice, following a fair investigation and hearing.

4. Right to be Accompanied

Employees have the statutory right to be accompanied at any disciplinary hearing by a colleague or a trade union representative. The request must be reasonable.

5. Appeals

An employee may appeal any disciplinary decision in writing within 5 working days of receiving the outcome. Appeals are heard by a manager not previously involved, and the appeal decision is final.